

Moving Attorney shall file proof of service of the moving papers no later than 16 court days before the continued hearing.

Once proper service is established, the Court is inclined to grant the motion.

Moving Attorney to give notice of the continued hearing.

7. 30-2025-01467538

Satterfield vs. Golden Rain Foundation of Laguna Woods

1. Motion to Compel Further Responses to Special Interrogatories

Plaintiff Patricia Satterfield (“Plaintiff”) moves to compel Defendant Golden Rain Foundation of Laguna Woods (“Defendant”) to serve further responses to Plaintiff’s Special Interrogatories, Set Two, Nos. 32, 36-37, 39-44, 46, 50, 52-63, 66-67, and 69-70. The motion is **GRANTED in part and DENIED in part** as set forth below.

Code of Civil Procedure section 2030.300(a) provides that a party propounding discovery may move for an order compelling a further response if an answer to a particular interrogatory is evasive or incomplete, or an exercise of the option to produce documents under Code Civ. Proc. section 2030.230 is unwarranted or the required specification of those documents is inadequate, or an objection to an interrogatory is without merit or too general.

If a timely motion to compel has been filed, the burden is on the responding party to justify the adequacy of the response, the propriety of any objections, or the failure to fully answer the interrogatories. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255; *Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221.) A party opposing discovery has an obligation to supply the basis for an objection asserted in response to discovery. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 549 [party objecting to interrogatories has burden of supplying supporting evidence in response to a motion to compel].)

Although good cause need not be shown, the court must consider the objections to the interrogatories, the interrogatories themselves, the pleadings, and the contentions of the interrogating party as to the purpose and validity of the interrogatories. (*Columbia Broadcasting System, Inc. v. Superior Court for Los Angeles County* (1968) 263 Cal.App.2d 12, 18-19.) “If the interrogatories stray too far and seek information which cannot reasonably serve the acknowledge purposes of pretrial discovery, the motion should be denied.” (*Id.* at p. 19.)

Interrogatory No. 32: Granted. Although the interrogatory contains subparts, they are all related to a single subject. (*See, e.g., Clement v. Alegre* (2009) 177 Cal. App. 4th 1277, 1290.) The reference to Interrogatory No. 4 does not violate the Code because the relevant text from Interrogatory No. 4 is quoted within interrogatory No. 32.

Interrogatory No. 36: Granted. Although Defendant’s objection was essentially based on relevance, Defendant’s opposing separate statement only argues that the interrogatory contains subparts, is compound and is not full and complete in and of itself. These arguments are not well

		taken, as the interrogatory concerns a single subject. Further, Defendant has not submitted evidence to support its relevance argument. <u>Interrogatory Nos. 37 and 39: Granted.</u> Plaintiff’s articulated sufficient relevance. The remainder of the objections are overruled for the reasons stated regarding No. 36. <u>Interrogatory Nos. 40 and 41: Granted.</u> The interrogatories are relevant and each concerns a single subject. <u>Interrogatory No. 42: Granted</u> for the reasons discussed above regarding No. 32. <u>Interrogatory Nos. 43-44: Granted.</u> Defendant’s objections that the interrogatory contains subparts and is not full and complete in and of itself are overruled. <u>Interrogatory No. 46: Granted in part.</u> The time period shall be limited to February 13, 2019 to the present, which is a five year lookback period from the February 13, 2024 date of the incident alleged in the Complaint. (Compl. ¶ 1.) Records prior to that are of tenuous relevance. <u>Interrogatory No. 50: Denied.</u> Defendant’s relevance objection is sustained. <u>Interrogatory No. 52: Granted.</u> Defendant’s objections that the interrogatory contains subparts and is not full and complete in and of itself are overruled. <u>Interrogatory No. 53: Granted in part.</u> The interrogatory shall be limited to incidents that occurred in common areas. Incidents that occurred in private areas are excluded. <u>Interrogatory Nos. 54 and 55: Denied.</u> These interrogatories contain multiple subparts that do not concern a single subject and are compound. <u>Interrogatory No. 56: Granted.</u> Defendant’s objections that the interrogatories contain subparts, are compound and are not full and complete in and of themselves are overruled. The subparts relate to a single subject. <u>Interrogatory Nos. 57-63, 66-67 and 69-70: Denied.</u> These interrogatories contain multiple subparts that do not concern a single subject and are compound. Both parties’ <u>requests for sanctions</u> are DENIED. <i>Defendant is to provide <u>supplemental responses</u> within <u>20 days</u> of this ruling.</i> Plaintiff to give notice.
8.	30-2025-01458151 Giles vs. Cervantes	1. Motion to Consolidate Defendants, Peter Sandoval Cervantes and Aliso Viejo Towing & Recovery Inc., move for an order consolidating the following cases: <i>Jovan Derrick Giles v. Peter Sandoval Cervantes and Aliso Viejo Towing Recovery</i>, case no. 30-2025-01458151-CU-PA-CJC and <i>Carolle Gonzales v. Aliso Viejo Towing and Peter Sandoval Cervantes; Sieglinge Hite</i>, case no. 30-2025-014899339-CU-PA-NJC.